

20STCV47763 20STCV47763

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-08-12

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Case Number: 20STCV47763 Hearing Date: August 12, 2026 Dept: 25

HEARING DATE: Wed., August 12, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: Pensco

Trust Company LLC v. Bobritsky, et al.

COMP FILED: 12-14-20

CASE NUMBER: 20STCV47763

NOTICE: OK

PROCEEDINGS: MOTION TO COMPEL RESPONSE TO INTERROGATORIES TO ENFORCE ORDER
DATED MAY 2, 2024

MOVING PARTY:

Plaintiff Pensco Trust Company LLC

RESP. PARTY: None

MOTION TO COMPEL RESPONSES TO
INTERROGATORIES; REQUEST FOR SANCTIONS

(Code Civ. Proc., §§ 2030.290, 708.020)

TENTATIVE RULING:

The Court GRANTS Pensco Trust Company LLC's motion to
compel responses. Felix and Yelena Bobritsky

are ordered to serve verified responses to the interrogatories, without objections, within 30 days of this order.

Felix and Yelena Bobritsky must pay Pensco \$2,623.41, jointly and severally, within 30 days of this order.

Pensco is to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of August 10, 2026 ☐ Late ☒

None

REPLY: None

filed as of August 10, 2026 ☐ Late ☒

None

ANALYSIS:

Pensco Trust Company LLC sued Felix Bobritsky,

Yelena Bobritsky, Cooper Dietz, Daniala Bobritsky, and Shoshanah Bobritsky. Shoshanah was dismissed;a default judgment was entered against Felix,

Yelena, Daniala, and Dietz; and this action was reclassified as a civil limited jurisdiction matter.

On May 2, 2024, this Court granted Pensco's motion to compel Felix and Yelena to respond to interrogatories to enforce the judgment and imposed monetary sanctions against them both in the amount of \$1,823.91. Felix and Yelena failed to obey the Court's order. Pensco then propounded interrogatories to enforce the May 2, 2024 order, Felix and Yelena failed to respond, so Pensco now moves to compel responses to those interrogatories.

A monetary sanctions order has the force and effect of a money judgment and is enforceable under the Enforcement of Judgments Law. (Code Civ. Proc., §§ 680.230, 680.270; Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615; see Lucky United Properties Investment, Inc. v. Lee (2010) 185 Cal.App.4th 125, 144.) A judgment creditor may propound written interrogatories to the judgment debtor, in the manner prescribed in Code of Civil Procedure section 2030.010 et seq., requesting information to aid in enforcement of a money judgment. (Code Civ. Proc., § 708.020, subd. (a).) The judgment debtor must answer within the time prescribed in Code of Civil Procedure section 2030.010 et seq. (Id., § 708.020, subd. (a).)

A party must respond to interrogatories within 30 days after service of such interrogatories. (Code Civ. Proc., § 2030.260, subd. (a).) If a party fails to do so, it waives the right to object, and the propounding party may move for an order compelling responses to the interrogatories. (Id., § 2030.290, subd. (a), (b).)

Pensco served Felix and Yelena with the interrogatories in March 2026. To date, no responses have been served.

Felix and Yelena have not filed an opposition indicating otherwise. Accordingly, the Court GRANTS Pensco's motion. Felix and Yelena are ordered to serve verified responses without objections to the interrogatories within 30 days of this order.

Felix and Yelena must also pay sanctions for causing Pensco to compel responses to the interrogatories. (Code Civ. Proc., § 2030.290, subd. (c); see id., § 708.020, subd. (c).) Pensco requests \$2,623.41 from Felix and Yelena, reflecting 3 hours of counsel's work at \$850.00 per hour plus \$73.41 in filing fees. The Court finds this request reasonable. Felix and Luna must pay Pensco \$2,623.41, jointly and severally, within 30 days of this order.

Pensco is to give notice.